

17. 9:00 AM CASE NUMBER: MSC21-01176

CASE NAME: VAUGHNS VS MUSUKULA

TAX PLAINTIFF'S COSTS

FILED BY: VELLABOYANA, ANURADHA

TENTATIVE RULING:

CONTINUED to January 4, 2027, pursuant to the Stipulation and Order entered September 18, 2026.

18. 9:00 AM CASE NUMBER: MSC21-02074

CASE NAME: BANERJEE VS. SEECUBIC INC

***HEARING ON MOTION IN RE: VACATE AND SET ASIDE ENTIRE DEFAULT AND DEFAULT JUDGMENT**

FILED BY:

TENTATIVE RULING:

On the Court's own motion, this hearing is **CONTINUED** to November 2, 2026 at 9:00 a.m. in this Department.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-02351

CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.

***HEARING ON MOTION FOR DISCOVERY DETERMINATION OF THE AMOUNT OF MONETARY SANCTIONS**

FILED BY:

TENTATIVE RULING:

Defendants NFP Corporate Services (CA), Inc. and NFP CA Insurance Services, Inc. ("Defendants") filed three separate motions to compel further responses to discovery on December 30, 2025 (the "Motions to Compel Further Responses"). The Motions to Compel Further Responses was subsequently set for hearing on June 8, 2026. The Motions to Compel Further Responses were heard on June 8, 2026. See Order entered June 8, 2026 ("June 8th Order"). The Court ruled on the discovery matters at issue. *Id.*

The Court found that Plaintiff engaged in conduct that constituted misuse of the discovery process and that warranted the imposition of monetary sanctions (the "Monetary Sanctions"). See June 8th Order.

A briefing schedule was set for submission of further papers regarding the amount of the Monetary Sanctions and a further hearing was set on September 28, 2026.

Analysis

Defendants' supplemental declaration regarding Monetary Sanctions was filed on July 8, 2026. See Declaration of Brittany Rogers filed July 8, 2026 ("Rogers Decl."). The declaration summarizes scope of the work performed in connection with litigating the Motions to Compel Further Responses and the billing rates and hours for the various timekeepers doing that work. *Id.* at ¶13 *et seq.* A summary of hours worked, including narrative description of the work performed was proffered as well. *Id.* at **Exhibit A**. Also included was a declaration by prior counsel Annalisa Zulueta. *Id.* at **Exhibit B**. A total of

\$9,657.50 is sought. *Id.* at ¶10. Defendants' counsel indicates that they are utilizing rates below their "standard rates" typically charged. *Id.* at ¶8.

Plaintiff filed an opposition declaration on September 17, 2026. See Declaration of Eric Bryan Seuthe filed September 17, 2026 ("Seuthe Decl."). This declaration largely addresses tangential matters and fails to address, with particularity, the claimed expenses relating to the litigation of the subject Motions to Compel Further Responses.

The Court has considered the totality of the circumstances and concludes that Monetary Sanctions in the amount of \$6,175.00 are just and reasonable. In fixing said amount, the Court has considered all evidence in the record before the Court, including the further declarations submitted. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute, including, but not limited to, the substance of the underlying discovery dispute and the outcome achieved, as well as the Court's own independent review of the nature and extent of the claimed billings to litigate the matters.

Disposition

The Court further finds and orders as follows:

1. The Monetary Sanctions shall be paid by Plaintiff to Defendants in the sum of **\$6,175.00** within **sixty (60) calendar days** of notice of entry of this order.
2. Defendants shall issue the order after hearing.

20. 9:01 AM CASE NUMBER: C25-03371
CASE NAME: CSAA INSURANCE EXCHANGE VS. NICOLAS CALDERON MARTINEZ
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEMAND FOR INSPECTION, SET ONE NOS. 4-5
FILED BY: CSAA INSURANCE EXCHANGE
TENTATIVE RULING:

PARTIES TO APPEAR.

21. 9:01 AM CASE NUMBER: C25-03371
CASE NAME: CSAA INSURANCE EXCHANGE VS. NICOLAS CALDERON MARTINEZ
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE NO. 2.6(B)
FILED BY: CSAA INSURANCE EXCHANGE
TENTATIVE RULING:

PARTIES TO APPEAR.